

CREDIT AGREEMENT

PARTIES

Contract No : CM19A00003

This Credit Agreement is made between Cash Mart Asia Lending Inc.(hereinafter called the 'Lender') with its office situated at 53 Bayani Road unit 2C, Fort Bonifacio, Taguig City, Metro Manila, Philippines 1630 and HELLO BYE with mailing address at (hereinafter called the 'Borrower'). The parties hereby agree to be bound by the following stipulations:

1. THE LOAN

At the request of the Borrower, the Lender extends the Loan to the Borrower in the principal sum of ten thousand Pesos(PhP 10000), (the "Loan"), the amount of which is acknowledged to have been received by the Borrower. The Borrower, in turn, promises to repay the Loan to the Lender within 28 Days from the date hereof(the "Loan Term") with an interest rate of eight percent (8 %) for the duration of the Loan Term.

2. PURPOSE OF THE LOAN

The amount granted as Loan is to be utilized by the Borrower for legitimate purposes, specifically for .

3. PROCESSING FEE

The Borrower shall pay to the Lender TEN percent (10 %) of the principal amount of the Loan, which shall be paid upfront before disbursement.

4. REPAYMENT

- a. The Borrower undertakes to repay the outstanding Loan on or before the end of the term as specified in Section 1 of this Agreement.
- b. The repayment schedule shall be furnished upon the final approval and after disbursement to the Borrower of the principal amount applied for and shall follow the approved Loan Term accordingly. The said schedule shall be part of this Agreement and will be attached as Annex A - Repayment Schedule.
- c. If the Borrower fails to pay the Loan upon the expiry of the term provided, there shall be charged against him, a penalty of ONE percent(1 %) late interest per day upon the unpaid balance plus late payment charges as stated in Annex A Repayment Schedule. Also, the payment of the outstanding balance shall then be demandable without need of prior notice.
- d. The Borrower shall be required to pay in cash at the payment service providers which are in partnership with the Lender or through any payment facilities as directed or accepted by the Lender.

Signature: _____

e. Consistent with Article 113 of the Labor Code and Labor Advisory No. 11, series of 2014, the Borrower consents to and authorizes his employer(if employed) to deduct a portion of his salary in order to meet the scheduled loan repayment until such time that the whole Loan Term is met and fulfilled in accordance to Annex A -Repayment Schedule. in favor of the Lender. The consent can be in the form of a signed Certificate Of Employment (COE)wherein the employer should acknowledge and state in a clear manner the purpose of issuance to the employee.

5. REPRESENTATIONS AND UNDERTAKINGS

a. The Borrower hereby represents and warrants:

i. The Borrower, and where the Borrower is a juridical person, each officer and director thereof, is not bankrupt, of unsound mind or incapable of managing his / her own affairs and where the Borrower is a corporation, it is duly constituted and validly existing and has the power to own property and assets and to carry on its business as presently conducted;

ii. The Borrower, or where the Borrower is a juridical person, the authorized representative thereof for purposes of entering into contract, voluntarily entered into and executed herein Agreement;

iii. If the Borrower is a juridical person, it undertakes that its representative is duly authorized to enter into and perform the obligations under this Agreement and that all necessary action has been taken to authorize the creation, delivery and performance of this Agreement, and that entering into this Agreement will not constitute a breach of any restrictions applicable to the Borrower.

iv. The Borrower will use the loan only according to the purpose given in this Agreement;

v. The entry into and performance by the Borrower of the obligation contemplated by this Agreement do not and shall not conflict with: (i)any existing law or regulation applicable to the Borrower; or(ii) any agreement or instrument binding upon the Borrower; and

vi. The Borrower has informed the Lender of all required information which are material and relevant to the approval of the Loan which ought to be disclosed to the Lender in view of the provisions of this Agreement.The Borrower warrants that said information are true, complete, and accurate at the date they were disclosed and are not misleading in any respect.

b. The Borrower covenants with the Lender that during the Loan Term:

i. The Borrower, and where the Borrower is a juridical person, each officer and director thereof, is not bankrupt, of unsound mind or incapable of managing his / her own affairs and where the Borrower is a corporation, it is duly constituted and validly existing and has the power to own property and assets and to carry on its business as presently conducted;

Signature: _____

- ii. The Borrower, or where the Borrower is a juridical person, the authorized representative thereof for purposes of entering into contract, voluntarily entered into and executed herein Agreement;
- iii. If the Borrower is a juridical person, it undertakes that its representative is duly authorized to enter into and perform the obligations under this Agreement and that all necessary action has been taken to authorize the creation, delivery and performance of this Agreement, and that entering into this Agreement will not constitute a breach of any restrictions applicable to the Borrower.
- iv. The Borrower will use the loan only according to the purpose given in this Agreement;
- v. The entry into and performance by the Borrower of the obligation contemplated by this Agreement do not and shall not conflict with: (i) any existing law or regulation applicable to the Borrower; or (ii) any agreement or instrument binding upon the Borrower; and
- vi. The Borrower has informed the Lender of all required information which are material and relevant to the approval of the Loan which ought to be disclosed to the Lender in view of the provisions of this Agreement. The Borrower warrants that said information are true, complete, and accurate at the date they were disclosed and are not misleading in any respect.
- iv. The Borrower shall provide a prior written notice to the Lender of any change in the Borrower's name, residential / office address, or any material information indicated in the Loan Application within three(3) calendar days of such change;
- v. The Borrower or his representative shall notify the Lender of any change in the Borrower's employment, business or profession. In the event the Borrower is self-employed or is a juridical person, the Borrower or the authorized representative, as the case may be, hereby undertakes to keep the Lender informed about the financial situation of the business as may be requested by the Lender.

6. EVENT OF DEFAULT

The Loan, its interest and penalties shall be immediately due and payable upon the occurrence of one or more of the following:

- a. The Borrower uses the Loan for a purpose other than stated in this Agreement;
- b. The Borrower fails to comply with any provision of this Agreement. This includes any failure to pay, when due, the principal, interest, and / or any fee payable;
- c. The Borrower is discovered to have concealed material information in the loan application or made false or misleading representation / s or statement / s in the course of securing the approval of this Agreement;
- d. Failure of the Borrower to settle any indebtedness in respect of monies borrowed from the Lender, even for a different transaction;
- e. Failure of the Borrower to pay tax obligations or duties on their due date.

Signature: _____

Upon the occurrence of an Event of Default, the Lender is entitled to:

- a. Notify the Borrower in writing, declaring any and all amounts outstanding under this Agreement, including all accrued interest and other sums payable in respect thereto, as well as any other indebtedness of the Borrower in favor of the Lender to be immediately due and payable;
- b. Initiate arbitration proceedings as provided under Section 15 hereof.
- c. Exercise all of its rights and remedies under this Agreement and other Transaction Documents, or existing law to protect its interest as creditor against the Borrower or his surety(ies) and / or guarantor(s), when applicable.

7. INDEMNITY

The Borrower shall indemnify the Lender any cost, loss or liability incurred by the Lender arising from arbitration or similar proceedings with respect to this Agreement due to the fault of the Borrower. The Borrower agrees to indemnify and hold free and harmless and defend the Lender, its affiliates, representatives, assigns, officers, directors, employees or agents, from and against any and all claims, actions, suits, demands, damages, losses, liabilities, settlements and costs and expenses whatsoever which Lender may incur by reason of or in connection with (a) the execution, delivery, administration or enforcement of this Agreement, or (b) the execution and delivery or transfer of, or payment or failure to pay under, this Agreement.

8. PRIVACY OF INFORMATION

The Lender shall respect the privacy of the Borrower's personal information obtained in relation to this Agreement. For this purpose, the Lender shall implement reasonable and appropriate organizational, physical and technical measures intended for the protection of the Borrower's personal information. Notwithstanding the foregoing, the Borrower hereby expressly permits the Lender to disclose to (i) the government authorities; (ii) any party / person proposing to tender any payment towards or purchase the indebtedness under the Loan; (iii) its auditors, lawyers or any other debt collection agents; (v) credit reporting agencies; (vi) insurance companies, agents, contractors or third party service providers who are involved in the provision of products and services to or by the Lender and the holding company, head office, other branches, subsidiaries, related companies of the Lender, any information relating to the Borrower's account in respect of this Agreement to such extent as the Lender may reasonably deem necessary. The Borrower hereby agrees that the aforesaid information may be used, encrypted, transmitted, stored and published, either digitally or in print, by the Lender and its holding company, head office, other branches, subsidiaries, related companies, including its digital platform and/ or company circular, and/ or may be exchanged to or with such persons enumerated above as the Lender considers necessary to the extent as permitted by Philippine laws. The aforesaid actions are without liability to the Lender. The Borrower expressly consents to such actions and declares that no further consent from the Borrower is necessary or required in relation thereto.

Signature: _____

9. NOTICES

Notices given to the parties in connection with this Agreement may be delivered by hand, by courier, electronic messaging(e - mail), facsimile to the facsimile number of the other party, or sent via SMS to the mobile number as disclosed.

10. ASSIGNMENT

Notwithstanding any other provisions of this Agreement, the Lender may at any time: (i) assign its rights and obligations pertaining to the Loan; or(ii) create a security in or over any or all of its rights or obligations under this Agreement to any person provided that the Lender shall notify the Borrower seven(7) business days prior thereto. The Borrower is not permitted to assign or transfer any of the Borrower's rights or obligations under this Agreement without the prior notification to and written consent of the Lender.

11. WAIVER

The delay or failure of the Lender to exercise of any of its rights in this Agreement shall not be construed or deemed as a waiver of the Lender to the exercise of such rights.

12. GOVERNING LAW

This Agreement is governed by the laws of the Philippines.

13. ARBITRATION CLAUSE

Any dispute, controversy or claim arising out of or relating to this contract, or the breach, termination or invalidity thereof shall be settled by arbitration in accordance with the Philippine Dispute Resolution Center Arbitration Rules in force at the time of the commencement of the arbitration.

14. SURETY AND GUARANTEE

The Borrower's surety(ies) or guarantor(s), if any, will be subjected to the terms on payment upon the occurrence of one or more events of default.

15. SEVERABILITY

If any part of this agreement is declared unenforceable or invalid for any reason, the remainder will continue to be valid and enforceable.

IN WITNESS WHEREOF, the parties have hereunto signed this CREDIT AGREEMENT on 01-09-2019 at 06:10 PM at Taguig City.

CASH MART ASIA LENDING INC

Lender

Borrower(Signature)